State of California
Office of Administrative Law

In re: Department of Corrections and Rehabilitation	*AMENDED* NOTICE OF APPROVAL OF CERTIFICATE OF COMPLIANCE
Regulatory Action: Title 15, California Code of Regulations	Government Code Sections 11349.1 and 11349.6(d)
Adopt sections: 3574 Amend sections: Repeal sections:	OAL Matter Number: 2025-0321-01 OAL Matter Type: Certificate of Compliance (C)

Through this Certificate of Compliance action, the Department of Corrections and Rehabilitation makes permanent the emergency regulatory changes adopted in OAL File No. 2024-0924-02EON and readopted in OAL 2025-0311-01EON. Specifically, the adoption of Section 3574 into California Code of Regulations, Title 15 (CCR 3574) regarding the sex offender treatment program for sex offender supervised persons.

OAL approves this regulatory action pursuant to section 11349.6(d) of the Government Code.

Date: April 28, 2025

Allegra Volonte Anvari
Attorney

For: Kenneth J. Pogue
Director

Original: Jeffrey Macomber, Secretary
Copy: Dmitriy Kostyuk

TEXT OF ADOPTED REGULATIONS

In the following, underline indicates new text.

California Code of Regulations

Title 15. Crime Prevention and Corrections

Division 3. Adult Institutions, Programs and Parole

Chapter 1. Rules and Regulations of Adult Operations and Programs

Subchapter 6. Adult Parole

Article 5. Sex Offenders

3574. Sex Offender Treatment

(a) The requirement for a supervised person to attend sex offender treatment is established pursuant to Penal Code (PC) section 3008(d), persons released to parole and required to register pursuant to PC sections 290 to 290.023 shall participate in a sex offender management program. The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM~~s~~), and polygraph examinations. Sex offender treatment providers (who~~m~~ are trained and certified pursuant to PC 290.09) shall be subject to the terms of the California Sex Offender Management Board.

(1) Curriculum Phase, also known as the active phase, is when the supervised person attends individual and group therapy sessions, at the prescribed hours per week, as determined by the sex offender treatment provider. These sessions focus on the goals and objectives of the treatment plan determined by the sex offender treatment provider through the sex offense specific treatment curriculum. It also involves the completion of mandated State Authorized Risk Assessment Tools for Sex Offenders (SARATSO) and the participation in polygraph assessments.

(2) Maintenance Phase is a phase where the supervised person works to maintain the gains made in the curriculum phase. Maintenance phase occurs when a supervised person has addressed the underlying issues related to their offending behavior, developed skills to lead a pro-social life, and mitigated their dynamic risk factors (according to the SARATSO assessment tools), as determined by the sex offender treatment provider, allowing for adjustment of treatment requirements. While in the maintenance phase, the supervised person is expected to continue to work towards their prescribed treatment plan goals, complete SARATSO assessments, participate in polygraph assessments, and attend group sessions as determined by the sex offender treatment provider. The supervised person may be required to attend in person sessions

weekly, monthly, or quarterly, based on their predetermined needs and assessments by the sex offender treatment provider.

(3) Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. This phase is for supervised persons who voluntarily continue their participation in the sex offender management program after they have successfully completed the curriculum and maintenance phases or persons who have been discharged from parole supervision.

(A) Persons voluntarily participating in the aftercare phase are responsible for any costs associated with participation.

(4) Containment Team Meeting is a meeting with all involved parties, as referenced in subsection 3574(a)(4)(A), whose purpose is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case factors to evaluate the supervised person's readiness for sex offender management program completion.

(A) The Containment Team shall normally be comprised of a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative. In the event all members of the Containment Team are not available to meet, the Containment Team shall minimally consist of a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person. The Containment Team may also include other relevant stakeholders (e.g. Division of Adult Parole Operations and community program managers, polygraph examiner, etc.), family members of the supervised person, or any person in the supervised person's life that wishes to participate and can provide a first-hand account of the positive progress the supervised person is making.

(5) A Polygraph is a machine that measures a person's physiological responses when they respond to questions. Polygraph assessments are completed or contracted by the sex offender treatment provider as required by PC section 3008(d)(3).

(b) Persons placed on parole on or after July 1, 2012, required to register pursuant to PC sections 290 to 290.023, inclusive, shall successfully complete a sex offender management program in accordance with PC section 3008(d). Program participation shall be no less than one year, up to the entire period of parole. Participation in the sex offender management program is required, regardless of when the qualifying offense was committed.

(c) The sex offender treatment provider prescribes the number of treatment hours per week as determined by the supervised person's risks, needs, responsivity, and offense-free time in the community.

(d) Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by the PC section 3008(d).

(e) The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole and the electronic monitoring requirements of the supervised person pursuant to PC 3010.10. The CTM schedule shall be as follows:

(1) The ~~first~~ initial CTM shall be between ~~within~~ 90 and 100 calendar days ~~of~~ from release to parole, or ~~within~~ between 90 and 100 calendar days ~~of the supervised person's revocation release date~~ following a release of a supervised person who has spent 90 days or more in custody. The purpose of this CTM is to determine the most appropriate level of parole supervision needed for monitoring the supervised person while in the community, in accordance with Section 3573(c).

(2) The second CTM shall be within nine months following the first CTM (one-year CTM). This is the first review to determine whether the supervised person's sex offender management program requirements have been satisfied, completing their statutory requirement to successfully complete a sex offender management program.

(3) All subsequent CTMs shall be at least annually thereafter in accordance with the supervised person's level of parole supervision.

(f) When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.~~7~~11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:

(1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

(2) Pursuant to Section 3573, a Stable-2007 score of four or higher for males only.

(3) A current polygraph completed with deception found or new disclosure admissions that the supervised person has committed acts that would incur a technical or law violation.

(4) Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review.

(g) The parole agent and unit supervisor may re-refer a supervised person to a sex offender management program for evaluation if there is a change in the supervised person's behaviors related to the risk of re-offense to a level likely to lead to a risk to

public safety, using the CDCR 1502 (Rev. 07/24) Activity Report. A re-referral may also be initiated at the request of the supervised person.

(1) Upon re-referral, the sex offender treatment provider shall complete the dynamic risk and violence risk assessments, pursuant to section 3573 and PC sections 290.04 and 290.09, to determine if the risk to re-offend has increased.

(A) If risk to re-offend has increased, the supervised person will be required to attend the sex offender management program, with the prescribed hours of treatment being determined by the sex offender treatment provider, until the increased risk to re-offend has been mitigated. While the supervised person is attending a sex offender management program, CTMs shall be re-established in accordance with Section 3574.

(B) If the sex offender treatment provider determines there is no increased risk in re-offense, the re-referral shall be considered closed, and the sex offender management program requirements remain completed.

Note: Authority cited: Sections 5058 and 5058.3, Penal Code. Reference: Sections 290 through 290.023, 3008, 5054, and 9003, Penal Code.

STATE OF CALIFORNIA

ADOPT

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION (TO BE COMPLETED BY AGENT OF RECORD)

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	Supervision Level	Parole Unit

PC 290 Offense: | Commitment Offense (if different): | Participating in SOT: ☐ YES ☐ NO ☐ N/A

Select the form purpose and complete the associated form sections (Check one box)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3, 4 & 5 if applicable)
☐ Abbreviated CTM (Sections 1,3, & 4) ☐ Earned Discharge Consideration Committee (complete in PVDTS): PVDTS ID # _____

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear
☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

Other Participant's Name: _____ Relation to Supervised Person _____ Comments: _____

SECTION 2: ASSESSMENT SCORES (TO BE COMPLETED BY AGENT OF RECORD)

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
CSRA		☐ LOW (1) ☐ MODERATE (2) ☐ HIGH (3 TO 5)
STATIC (IF APPLICABLE)		☐ HIGH RISK SEX OFFENDER (HRSO)(4 AND ABOVE) ☐ NON-HRSO (3 AND BELOW)
FEMALE SEX OFFENDER RISK ASSESSMENT (IF APPLICABLE)		☐ HRSO (MODERATE, HIGH) ☐ NON-HRSO (LOW)
LS/CMI _____ Date Administered		☐ VERY LOW (0TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) _____ Date Administered		☐ LOW (0 TO 3) ☐ MODERATE (4TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH _____ Date Administered ☐ **INCONCLUSIVE**		**DECEPTION FOUND**: ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION**: ☐ YES ☐ NO

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT (TO BE COMPLETED BY AGENT OF RECORD)

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: Field File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 4: CATEGORY DETERMINATION AND/OR SOT REVIEW (TO BE COMPLETED BY DAPO AND SEX OFFENDER TREATMENT PROVIDER)

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Date	Treatment Program Name	Date

Treatment Provider Sex Offender Treatment Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

AOR Supervision Category Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

☐ Comments:

Effective Communication/Accommodation Provided: ☐ NO ☐ YES

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

US Determination: ☐ Remain in Current Category ☐ Move to Category: _____ Effective Date: _____

☐ Comments:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER UNIT (SOU) DETERMINATION (TO BE COMPLETED BY SOU PAROLE ADMINISTRATOR/ PAROLE AGENT III)

☐ This section shall be completed when the supervising parole unit and the SOT provider have conflicting sex offender treatment recommendations.

SOU Parole Administrator/ Parole Agent III Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete

☐ Comments:

Parole Administrator/ Parole Agent III Name	Parole Administrator/ Parole Agent III Signature	Badge #	Date

STATE OF CALIFORNIA

REPEAL

DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	CDD	Supervision Level	Parole Unit

Commitment Offense(s): | PC 290 Offense:

CSRA SCORE: ☐ **LOW (1)** ☐ **MODERATE (2)** ☐ **HIGH (3 TO 5)** | Participating in SOMP: ☐ YES ☐ NO

(Select the form purpose and complete the associated form sections)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4)
☐ CTM & Sex Offender Treatment Review (Sections 1,2,3,4 & 5)
☐ Abbreviated CTM (Sections 1,2,3 & 4)
☐ Earned Discharge Consideration Committee (Sections 1 & 6)

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request
☐ Supervised Person is Not Required to Attend
☐ Supervised Person Failed to Appear
☐ Supervised Person Declined to Participate
☐ Supervised Person Participated Telephonically
☐ Effective Communication/Accommodation Provided:

Other Participants

Name:_____ Relation to Supervised Person_____ Comments: _____

SECTION 2: SEX OFFENDER TREATMENT ASSESSMENT SCORES

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
STATIC SCORE OR FEMALE SEX OFFENDER RISK ASSESSMENT Date Administered: _____		☐ HIGH RISK SEX OFFENDER (HRSO) (MODERATE, HIGH, OR 4 AND ABOVE) ☐ NON- HRSO (LOW OR 3 AND BELOW)
LS/CMI Date Administered: _____		☐ VERY LOW (0 TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) Date Administered: _____		☐ LOW (0 TO 3) ☐ MODERATE (4 TO 11) ☐ HIGH (12 AND ABOVE)

POLYGRAPH TYPE:
☐ **MAINTENANCE** ☐ **INSTANT OFFENSE** ☐ **SEXUAL HISTORY** ☐ **INCONCLUSIVE**
Date Administered:_____

DECEPTION FOUND			DISCLOSURE ADMISSION		
☐ YES	☐ NO	☐ N/A	☐ YES	☐ NO	☐ N/A

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: C-File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 4: CATEGORY DETERMINATION

AOR Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

AOR Name	AOR Signature	Badge #	Date

AOR Comments and Instructions:

Unit Supervisor (US) Decision: ☐ Remain in Current Category ☐ Move to Category: _____ ☐ Effective Date: _____

US Name	US Signature	Badge #	Date

US Comments and Instructions:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER TREATMENT REVIEW

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Number	Treatment Program Name	Date

Treatment Provider Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Recommendation:

☐ Retain ☐ Complete ☐ Comments:

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Recommendation:

☐ Retain ☐ Complete ☐ Comments:

SECTION 6: EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 1502-DR, Discharge Review Report, Provided to Supervised Person ☐ YES ☐ NO

Completed in Parole Violations Disposition Tracking System (PVDTS) ☐ YES ☐ NO

If YES, PVDTS ID Number: _____ ***Note: If YES, attach the PVDTS report in lieu of completing this section***

US Name	US Signature	Badge #	Date

US Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

DA Name	DA Signature	Badge #	Date

DA Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

Administrative Review Officer (ARO) Name	ARO Signature	Badge #	Date

ARO Determination:

☐ Discharge ☐ Retain on Parole ☐ Comments:

DISTRIBUTION: Original: C-File **Copies:** Agent of Record (AOR), Supervised Person

FINAL STATEMENT OF REASONS

The Initial Statement of Reasons (ISOR) is incorporated by reference.

UPDATES TO THE INITIAL STATEMENT OF REASONS:

On January 3, 2025, the California Department of Corrections and Rehabilitation (CDCR or the department) published the Notice of Change to Regulations for Sex Offender Treatment, which began the public comment period. The department's Notice of Change to Regulations #25-01 was mailed the same day to individuals who had requested to be on the department's mailing list for regulation changes, was posted on the department's website, and copies were posted in CDCR institutions. Five written public comments were received during the public comment period. The comments are summarized and responded to below under the heading *Summaries and Responses to Written Public Comments Received During the Initial Comment Period*. A public hearing was held on February 20, 2025. The department received no comments during the public hearing.

DETERMINATIONS, ASSESSMENTS, MANDATES, AND FISCAL IMPACT:

The department has determined that no alternative considered would be more effective in carrying out the purpose for which this regulation is proposed or would be as effective and less burdensome to affected private persons or would be more cost effective to affected private persons and equally effective in implementing the statutory policy or other provision of law than the action proposed. No such alternatives were proposed or brought to the department's attention during the adoption of this rulemaking action.

The department has made an initial determination that the action will not have a significant adverse economic impact on business. Additionally, there has been no testimony or other evidence provided that would alter the department's initial determination.

The department has determined that this action imposes no mandates on local agencies or school districts, or a mandate which requires reimbursement pursuant to Part 7 (Section 17561) of Division 4 of the Government Code (GC).

The department has determined that no reasonable alternatives to the regulation have been identified or brought to the attention of the department that would lessen any adverse impact on affected private persons or small businesses than the action planned.

The department, in proposing the adoption of these regulations, has not identified nor has it relied upon any technical, theoretical, or empirical study, report, or similar document.

The department has relied upon the results of the Economic Impact Assessment, which can be found in the Notice of Proposed Regulations and is available for review as part of the rulemaking file.

NOTE REGARDING CDCR FORMS INCORPORATED BY REFERENCE (CCR, TITLE 1, SECTION 20):

This note explains the department's justification for incorporating forms by reference. The department uses over 1,500 forms, most of which are regulatory. It would be unduly

cumbersome, expensive and impractical to print all of these forms in the CCR text, therefore the department has always incorporated forms by reference, except in specific circumstances which do not apply in the case of these regulations.

The adopted, amended, and/or repealed forms included in this rulemaking action were made available to the public for review and were included in the notice of rulemaking sent to all parties who have requested notification.

AUTHORITY AND REFERENCES CITATIONS:

Penal Code sections 5058, 5058.3, 290 through 290.023, 3008, 5054, and 9003.

SUMMARIES AND RESPONSES TO WRITTEN PUBLIC COMMENTS RECEIVED DURING THE INITIAL COMMENT PERIOD:

Commenter #1

Comment 1: Pursuant to Section 3573, a Stable-2007 score of "four or higher for males only" shall be, amended to include but not limited to Transgender Men and Transgender Women. In addition, to include any sexual predator who is a biological person whose identity includes not soley Male or Transgender Female, or nonbinary. A stable score shall also be applicable to former biological males that now identify with an identity other than male.

In addition, it is imperative that the Aftercare Phase is a Mandatory Outpatient phase in the format of a support group with the sex offender treatment provider. The phase shall be for supervised persons and shall be mandated for no less than one, continuous year, to continue the sex offender's participation in the sex offender management program after the sex offender has successfully completed the curriculum and maintenance phases, or persons who have been discharged from parole supervision.

Response 1:

California Code of Regulations (CCR), Title 15, Section 3574 Sex Offender Treatment (f) (2) references reasons to retain a supervised person in a sex offender management program. Pursuant to this section, a Stable-2007 score of four or higher for males only is a factor. The California Sex Offender Management Board (CASOMB) has established State Authorized Risk Assessment Tools for Sex Offenders (SARATSO). These assessments are validated, and sex offender management professionals utilize the appropriate coding manual and addendums for determining scoring. The Stable-2007 is for males only and utilizes the appropriate coding. Gender identity is not a factor in the validation or application of the tool.

Regarding part two of the comment, CCR Title 15, Section 3574, Sex Offender Treatment, provides for a comprehensive evaluation of risk and needs for each supervised person. Sex Offender Treatment (SOT) participation is based on risk of re-offense to a level likely to lead to a risk to public safety. When the supervised person has successfully completed the maintenance phase it has been determined that their risk and needs have decreased

sufficiently to complete treatment. Additionally, requiring a person to attend a phase of treatment after it has been determined that they have successfully completed contradicts the purpose of the regulation. Lastly, aftercare phase is also voluntarily, attended by those who have discharged parole. The Division of Adult Parole Operations (DAPO) does not have the authority to require a person attend treatment if that person is no longer under the jurisdiction of DAPO.

Commenter #2

Comment: Commenter is an incarcerated person from High Desert State Prison. Commenter wants to know if there is a part from the proposed regulations for incarcerated persons who plead "no contest." Commenter states these people were accused of horrible charges and had no choice but to accept deals. Commenter states these groups should be able to live their life without watching their backs. These incarcerated persons should be reviewed on a case-by-case basis, including review of the programs complete while incarcerated, and the evidence for the crime accused of, upon their release.

Response 2:

The requirement for persons placed on parole, that are required to register pursuant to Penal Code (PC) sections 290 to 290.023, inclusive, attend sex offender treatment as required by PC 3008(d). Specifically, PC 3008(d)(2) states, "Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC.

Commenter #3

Comment 3: Commenter is an incarcerated person who provides some background information to their incarceration and sentencing. Commenter states that there are no rehabilitation efforts for incarcerated persons who are sentences as sex offenders, only punitive efforts. Commenter provides support for the proposed sex offender treatment program, but states that sex offender treatment efforts should be offered before release and completed during incarceration not after release, due to different life circumstances after release.

Response 3:

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC. DAPO must abide by PC 3008(d)(2), which states, "Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

Additionally, the proposed regulations are regarding Sex Offender Treatment after the release from incarceration. The proposed regulations do not address institutional sex offender treatment programs or their availability. Therefore, the department cannot speak to or address this subject matter at the moment.

Lastly, your comment identifies concerns for potential costs associated with a supervised person's request for a voluntary re-referral to SOT. PC 3008(e) states, "Any defendant ordered to be placed in an approved sex offender management treatment program pursuant to subdivision (d) shall be responsible for paying the expense of their participation in the program. The department shall take into consideration the ability of the defendant to pay, and no defendant shall be denied discharge onto parole because of their inability to pay."

Commenter #4

Comments 4 and 5 are duplicative: Commenter is a sex offender treatment provider and is responding to NCR 25-05 to solicitate their services and be considered as a contractor to provide sex offender treatment services.

Response 4: The comment is either insufficiently related to the specific action or actions proposed, or too generalized or personalized to the extent that no meaningful response can be formulated by the department in refutation of or accommodation to the comment. Therefore, the comment is being dismissed.
Additionally, the department responded to the commenter with resources on how to bid on state contracts.